

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 05, 2026
8:30 a.m.

5. JEFFREY STEVEN VANHEE V. ASHLEY NICHOLE VANHEE

25FL0526

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 15, 2026, to (1) modify child custody and visitation, (2) modify child and spousal support, (3) authorize Petitioner to access property, and (4) issue other parenting-related orders. Petitioner did not file an updated Income and Expense (I&E) declaration. However, the court notes that Petitioner's most recent I&E, filed June 16, 2026, remains current (assuming no facts have changed). (Cal. Rules Ct., R. 5.260, subd. (a)(3).)

The RFO included a request to shorten time, which the court granted. The court ordered Petitioner to serve the RFO no later than July 20, 2026, and ordered Respondent to file and serve a Responsive Declaration no later than July 29, 2026.

On July 17, 2026, Petitioner filed a supplemental interim declaration, a copy of which was served upon Respondent on July 16, 2026, per the proof of service attached to the declaration.

To date, there is no proof of service of the RFO in the court's file. Nonetheless, on July 24, 2026, Respondent filed a Responsive Declaration, a copy of which was served upon Petitioner that same day per the proof of service, also filed July 24, 2026. Apparently, Respondent re-filed the same Responsive Declaration on July 27, 2026. Based upon the Respondent's filings, the court deems Respondent to have waived any defect in notice.

On July 30, 2026, Respondent filed a "Supplemental Reply Declaration of [Respondent] ISO Request for Order Re. Deposit of Assets." Proof of service attached to the declaration shows it was electronically served upon Petitioner on July 30, 2026.

The court notes there is a separate hearing in this matter scheduled for August 06, 2026, regarding property issues. The court, on its own motion and in the interest of judicial economy, continues the instant hearing on Respondent's RFO filed July 15, 2026, to August 06, 2026, to be heard concurrently with the hearing on property issues.

Additionally, the court orders Respondent to file a current I&E no later than August 05, 2026 (to date, Respondent has not filed a current I&E in response to the pending RFO, which involves support issues).

TENTATIVE RULING #5: THE COURT, ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY, CONTINUES THE HEARING ON RESPONDENT'S RFO (FILED JULY 15, 2026) TO 8:30 A.M., THURSDAY, AUGUST 06, 2026, TO BE HEARD CONCURRENTLY WITH THE HEARING REGARDING PROPERTY ISSUES. RESPONDENT IS ORDERED TO FILE AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION NO LATER THAN AUGUST 05, 2026.